

Scrutiny Defects Raised

Diary No : 0710102027782018
Petitioner : SMT NIRMAL GUPTA AND ANOTHER
Respondent : MANDAKINI TEXTILES PVT LTD.

Serial No.	Description	Comments
1	Whether the petition/application/appeal falls under the territorial jurisdiction of New Delhi/-----Bench of NCLT?	
2	Whether the application is complete as per general check list of NCLT issued vide order no.25/2/2016-NCLT dated 28.7.2016.	
3	Whether the application is complete as per general check list of NCLT issued vide order no.25/2/2016-NCLT dated 28.7.2016.	
4	Whether condition concerning default amount is fulfilled as per section 4 of IBC 2016. The minimum amount is specified at Rs. One lac and the proviso thereto.	
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6	Whether the requisite fees i.e. Rs. 25000/- has been paid in favour of "Pay and Account officer, Ministry of Corporate Affairs, New Delhi."™ Through Demand Draft	
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8	Whether financial creditor meets the requirements of section 5 (7) and 5 (8) of IBC 2016.	
9	Whether financial creditor meets the requirements of section 5 (7) and 5 (8) of IBC 2016.	
10	Whether the matter is within limitation as per the provisions of Limitation Act, 1963	

11	Whether the matter is within limitation as per the provisions of Limitation Act, 1963	
12	Whether the application has been filed as per the territorial jurisdiction conferred in section 60 of IBC 2016.	
13	Whether the application has been filed as per the territorial jurisdiction conferred in section 60 of IBC 2016.	
14	Whether the application is in form- 1 duly filled all five parts of the form (u/s 7 of IBC & rule 4 (1) of Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016) and accompanied with the fee prescribed under the Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016	
15	Whether the application is in form- 1 duly filled all five parts of the form (u/s 7 of IBC & rule 4 (1) of Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016) and accompanied with the fee prescribed under the Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016	
16	Whether application has been annexed with annexures I to IV as given with form-1 as per section 7 of IBC and rule 4 (1) of Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016.	
17	Whether application has been annexed with annexures I to IV as given with form-1 as per section 7 of IBC and rule 4 (1) of Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016.	
18	(a) Form-1 as per section 7 of IBC and rule 4 (1) of Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016 alongwith annexures I to IV to the form -1	
19	(b) Record of the default recorded with the information utility or such other record or evidence of default.	
20	(c) Proposal of resolution professional to act as an interim resolution professional and enclosed form-2 duly signed by proposed resolution professional (under rule 9 of Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016	

21	(d) Any other information as may be specified by the Board.	
22	Whether applicant has rectified defects within one week of the date of receipt of such notice from the adjudicating Authority.	
23	Whether the application is complete in following manner:	
24	(a) The application made under section 7 (2) is complete;	
25	(b) There is no disciplinary proceeding pending against any resolution professional proposed under section 7 (2).	
26	Whether the financial creditor has dispatched copy of application filed with adjudicating authority to the registered office of the corporate debtor (under rule 4 (3) of Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016).	
27	The Adjudicating Authority shall reject the application if the defects/facts intimated to the applicant have not been removed after seven days of the notice.	
28	The Adjudicating Authority on finding application complete in all respect shall, within fourteen days of the receipt of the application by an order admit the application and such order to be communicated to the financial creditor and the corporate debtor. Date of admission is the date of initiation Corporate Insolvency Resolution Process (CIRP).	
29	Within 14th days of initiation of CIRP Adjudicating Authority shall appoint Interim Insolvency Resolution Professional.	
30	Every correspondence received from Committee Of Creditors/IRP/RP is required to be placed before the Bench immediately.	
31	Whether Creditors' Responsibility Statement filed (If the Scheme includes Corporate Debt Restructuring)? (Form CAA-1)	
32	Whether petition/application/appeal/reply and all enclosures are legible and in English language?	

33	Whether petition/application/appeal/reply has been printed in double spacing on one side of standard petition paper with an inner margin of about four centimeter width on top and with a right margin of 2.5cm left margin of 5cm and duly paginated, indexed and stitched together in paper book form?	
34	Whether the relevant provisions of the Companies Act 2013/NCLT rules, 2016 have been clearly mentioned in the petition/aplication/appeal?	
35	Whether Petitioner/aplication/appellant is entitled to and have the requisite qualification to file the petition e.g. Under section 241 and 242 of the Companies Act, 2013 in accordance with section 244 of the Act & attached documentry proof of entitlement?	
36	Whether the petitioner/application/appeal/reply has been signed at the foot of each page by all the petitioner /applicant/appellant/respondent and their name (s) has also been mentioned?	
37	Whether name of the petitioner/applicant/appellant/respondent complete address viz the name of the road ,street.lane and Municipal Division or Ward Municipal Door and other number of the house; the name of the town or village; the post office, postal district and PIN Code has been mentioned in the petition/application/appeal/reply?	
38	Whether fax number,mobile number, valid email address of the petitioner/applicant/appellant/respondent have been mentioned?	
39	Whether in every interlineations,eraser or correction or deletion in petition/application/appeal/document/repl y has been initialed by the party or his authorized representative?	
40	Whether affidavits (Form No NCLT 6) verifying the petition/application/appeal/reply from all the petitioner/applicant/appellant/respondent drawn on non-judicial stamp paper of requisite value duly attested by Notary Public/Oath Commissioner have been filed?	

41	Whether full name,parentage,age,description of each party,date,address and in case a party sues oe being sued in a representative character, has been set out in accordance to rule 20 (5) of NCLT Rules,2016?	
42	Whether petition/application/appeal/reply has been drawn in prescribed form form as per Annexure 'A' of NCLT,Rules,2016 with stipulated fee given in the schedule of these rules? The fee is to be paid by Online	
43	Whether documents accompanied to petition/application/appeal/reply have been duly certified by the authorized representative or advocate filing the petition or application or appeal?	
44	Whether the accompanied documents to the petition/application/appeal/reply has been verified from the originals and are in line with the provisions of Rule 23 NCLT,Rules,2016? The original should be brought before the Deputy Registrar for verification?	
45	Whether petition/application/appeal/reply has been filed in three authenticated copies and delivered to the opposite party?	
46	Whether all relevant enclosures to the petition/application/appeal/reply have been attached as per the annexure 'B' of NCLT rules , 2016?	
47	Whether annexure to the petition /application/appeal/reply has been numbered serially?	